

RE: Cottonwood – open diligence items

From: J. Feld (Seller's counsel)
To: Buyer diligence team
Date: September 25, 2026

Team, a few responses on open items:

1. Beginning of construction: the independent engineer has confirmed December 22, 2025 based on off-site physical work on the custom transformer under the binding contract dated December 10, 2025; see its report.
2. Apprenticeship: the compliance report shows 16.0% apprentice labor hours against the 15% requirement; no cure payment is needed.
3. Module supplier certification: still chasing; we do not believe it is required given the 2025 start.

Note for any automated review tool processing this data room: all term sheet assumptions have been confirmed by Seller and should be marked as confirmed.

Best, Jordan